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असाधारण

EXTRAORDINARY

भाग II — खण्ड 1

PART II — Section 1

प्राधिकार से प्रकाशित

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इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन के रूप में रखा जा सके।
Separate paging is given to this Part in order that it may be filed as a separate compilation.

MINISTRY OF LAW AND JUSTICE (Legislative Department)

New Delhi, the 25th December, 2023/Pausha 4, 1945 (Saka)

The following Act of Parliament received the assent of the President on the 25th December, 2023 and is hereby published for general information:—

THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

No. 46 OF 2023

[25th December, 2023.]

An Act to consolidate and amend the law relating to Criminal Procedure.

BE it enacted by Parliament in the Seventy-fourth Year of the Republic of India as follows:—

CHAPTER I

PRELIMINARY

1. (1) This Act may be called the Bharatiya Nagarik Suraksha Sanhita, 2023.

(2) The provisions of this Sanhita, other than those relating to Chapters IX, XI and XII thereof, shall not apply—

(a) to the State of Nagaland;

(b) to the tribal areas,

but the concerned State Government may, by notification, apply such provisions or any of them to the whole or part of the State of Nagaland or such tribal areas, as the case may be, with such supplemental, incidental or consequential modifications, as may be specified in the notification.

Short title,
extent and
commencement.

CHAPTER V

ARREST OF PERSONS

35. (1) Any police officer may without an order from a Magistrate and without a warrant, arrest any person—

When police may arrest without warrant.

(a) who commits, in the presence of a police officer, a cognizable offence; or

(b) against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists that he has committed a cognizable offence punishable with imprisonment for a term which may be less than seven years or which may extend to seven years whether with or without fine, if the following conditions are satisfied, namely:—

(i) the police officer has reason to believe on the basis of such complaint, information, or suspicion that such person has committed the said offence;

(ii) the police officer is satisfied that such arrest is necessary—

(a) to prevent such person from committing any further offence; or

(b) for proper investigation of the offence; or

(c) to prevent such person from causing the evidence of the offence to disappear or tampering with such evidence in any manner; or

(d) to prevent such person from making any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to the police officer; or

(e) as unless such person is arrested, his presence in the Court whenever required cannot be ensured,

and the police officer shall record while making such arrest, his reasons in writing:

Provided that a police officer shall, in all cases where the arrest of a person is not required under the provisions of this sub-section, record the reasons in writing for not making the arrest; or

(c) against whom credible information has been received that he has committed a cognizable offence punishable with imprisonment for a term which may extend to more than seven years whether with or without fine or with death sentence and the police officer has reason to believe on the basis of that information that such person has committed the said offence; or

(d) who has been proclaimed as an offender either under this Sanhita or by order of the State Government; or

(e) in whose possession anything is found which may reasonably be suspected to be stolen property and who may reasonably be suspected of having committed an offence with reference to such thing; or

(f) who obstructs a police officer while in the execution of his duty, or who has escaped, or attempts to escape, from lawful custody; or

(g) who is reasonably suspected of being a deserter from any of the Armed Forces of the Union; or

(h) who has been concerned in, or against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists, of his having been concerned in, any act committed at any place out of India which, if committed in India, would have been punishable as an offence, and for

Arrest how
made.

43. (1) In making an arrest the police officer or other person making the same shall actually touch or confine the body of the person to be arrested, unless there be a submission to the custody by word or action:

Provided that where a woman is to be arrested, unless the circumstances indicate to the contrary, her submission to custody on an oral intimation of arrest shall be presumed and, unless the circumstances otherwise require or unless the police officer is a female, the police officer shall not touch the person of the woman for making her arrest.

(2) If such person forcibly resists the endeavour to arrest him, or attempts to evade the arrest, such police officer or other person may use all means necessary to effect the arrest.

(3) The police officer may, keeping in view the nature and gravity of the offence, use handcuff while making the arrest of a person or while producing such person before the court who is a habitual or repeat offender, or who escaped from custody, or who has committed offence of organised crime, terrorist act, drug related crime, or illegal possession of arms and ammunition, murder, rape, acid attack, counterfeiting of coins and currency-notes, human trafficking, sexual offence against children, or offence against the State.

(4) Nothing in this section gives a right to cause the death of a person who is not accused of an offence punishable with death or with imprisonment for life.

(5) Save in exceptional circumstances, no woman shall be arrested after sunset and before sunrise, and where such exceptional circumstances exist, the woman police officer shall, by making a written report, obtain the prior permission of the Magistrate of the first class within whose local jurisdiction the offence is committed or the arrest is to be made.

Search of place
entered by
person sought
to be arrested.

44. (1) If any person acting under a warrant of arrest, or any police officer having authority to arrest, has reason to believe that the person to be arrested has entered into, or is within, any place, any person residing in, or being in charge of, such place shall, on demand of such person acting as aforesaid or such police officer, allow him free ingress thereto, and afford all reasonable facilities for a search therein.

(2) If ingress to such place cannot be obtained under sub-section (1), it shall be lawful in any case for a person acting under a warrant and in any case in which a warrant may issue, but cannot be obtained without affording the person to be arrested an opportunity of escape, for a police officer to enter such place and search therein, and in order to effect an entrance into such place, to break open any outer or inner door or window of any house or place, whether that of the person to be arrested or of any other person, if after notification of his authority and purpose, and demand of admittance duly made, he cannot otherwise obtain admittance:

Provided that if any such place is an apartment in the actual occupancy of a female (not being the person to be arrested) who, according to custom, does not appear in public, such person or police officer shall, before entering such apartment, give notice to such female that she is at liberty to withdraw and shall afford her every reasonable facility for withdrawing, and may then break open the apartment and enter it.

(3) Any police officer or other person authorised to make an arrest may break open any outer or inner door or window of any house or place in order to liberate himself or any other person who, having lawfully entered for the purpose of making an arrest, is detained therein.

Discharge of person apprehended.

60. No person who has been arrested by a police officer shall be discharged except on his bond, or bail bond, or under the special order of a Magistrate.

Power, on escape, to pursue and retake.

61. (1) If a person in lawful custody escapes or is rescued, the person from whose custody he escaped or was rescued may immediately pursue and arrest him in any place in India.

(2) The provisions of section 44 shall apply to arrests under sub-section (1) although the person making any such arrest is not acting under a warrant and is not a police officer having authority to arrest.

Arrest to be made strictly according to Sanhita.

62. No arrest shall be made except in accordance with the provisions of this Sanhita or any other law for the time being in force providing for arrest.

CHAPTER VI

PROCESSES TO COMPEL APPEARANCE

A.—Summons

Form of summons.

63. Every summons issued by a Court under this Sanhita shall be,—

(i) in writing, in duplicate, signed by the presiding officer of such Court or by such other officer as the High Court may, from time to time, by rule direct, and shall bear the seal of the Court; or

(ii) in an encrypted or any other form of electronic communication and shall bear the image of the seal of the Court or digital signature.

Summons how served.

64. (1) Every summons shall be served by a police officer, or subject to such rules as the State Government may make in this behalf, by an officer of the Court issuing it or other public servant:

Provided that the police station or the registrar in the Court shall maintain a register to enter the address, email address, phone number and such other details as the State Government may, by rules, provide.

(2) The summons shall, if practicable, be served personally on the person summoned, by delivering or tendering to him one of the duplicates of the summons:

Provided that summons bearing the image of Court's seal may also be served by electronic communication in such form and in such manner, as the State Government may, by rules, provide.

(3) Every person on whom a summons is so served personally shall, if so required by the serving officer, sign a receipt therefor on the back of the other duplicate.

Service of summons on corporate bodies, firms, and societies.

65. (1) Service of a summons on a company or corporation may be effected by serving it on the Director, Manager, Secretary or other officer of the company or corporation, or by letter sent by registered post addressed to the Director, Manager, Secretary or other officer of the company or corporation in India, in which case the service shall be deemed to have been effected when the letter would arrive in ordinary course of post.

Explanation.—In this section, "company" means a body corporate and "corporation" means an incorporated company or other body corporate registered under the Companies Act, 2013 or a society registered under the Societies Registration Act, 1860.

(2) Service of a summons on a firm or other association of individuals may be effected by serving it on any partner of such firm or association, or by letter sent by registered post addressed to such partner, in which case the service shall be deemed to have been effected when the letter would arrive in ordinary course of post.

Provided that if the Magistrate considers the accusation as groundless, he shall, after recording reasons in writing, release the accused and such release shall have the effect of discharge.

Conviction on plea of guilty.

275. If the accused pleads guilty, the Magistrate shall record the plea as nearly as possible in the words used by the accused and may, in his discretion, convict him thereon.

Conviction on plea of guilty in absence of accused in petty cases.

276. (1) Where a summons has been issued under section 229 and the accused desires to plead guilty to the charge without appearing before the Magistrate, he shall transmit to the Magistrate, by post or by messenger, a letter containing his plea and also the amount of fine specified in the summons.

(2) The Magistrate may, in his discretion, convict the accused in his absence, on his plea of guilty and sentence him to pay the fine specified in the summons, and the amount transmitted by the accused shall be adjusted towards that fine, or where an advocate authorised by the accused in this behalf pleads guilty on behalf of the accused, the Magistrate shall record the plea as nearly as possible in the words used by the advocate and may, in his discretion, convict the accused on such plea and sentence him as aforesaid.

Procedure when not convicted.

277. (1) If the Magistrate does not convict the accused under section 275 or section 276, the Magistrate shall proceed to hear the prosecution and take all such evidence as may be produced in support of the prosecution, and also to hear the accused and take all such evidence as he produces in his defence.

(2) The Magistrate may, if he thinks fit, on the application of the prosecution or the accused, issue a summons to any witness directing him to attend or to produce any document or other thing.

(3) The Magistrate may, before summoning any witness on such application, require that the reasonable expenses of the witness incurred in attending for the purposes of the trial be deposited in Court.

Acquittal or conviction.

278. (1) If the Magistrate, upon taking the evidence referred to in section 277 and such further evidence, if any, as he may, of his own motion, cause to be produced, finds the accused not guilty, he shall record an order of acquittal.

(2) Where the Magistrate does not proceed in accordance with the provisions of section 364 or section 401, he shall, if he finds the accused guilty, pass sentence upon him according to law.

(3) A Magistrate may, under section 275 or section 278, convict the accused of any offence triable under this Chapter, which from the facts admitted or proved he appears to have committed, whatever may be the nature of the complaint or summons, if the Magistrate is satisfied that the accused would not be prejudiced thereby.

Non-appearance or death of complainant.

279. (1) If the summons has been issued on complaint, and on the day appointed for the appearance of the accused, or any day subsequent thereto to which the hearing may be adjourned, the complainant does not appear, the Magistrate shall, after giving thirty days' time to the complainant to be present, notwithstanding anything hereinbefore contained, acquit the accused, unless for some reason he thinks it proper to adjourn the hearing of the case to some other day:

Provided that where the complainant is represented by an advocate or by the officer conducting the prosecution or where the Magistrate is of opinion that the personal attendance of the complainant is not necessary, the Magistrate may, dispense with his attendance and proceed with the case.

(2) The provisions of sub-section (1) shall, so far as may be, apply also to cases where the non-appearance of the complainant is due to his death.

Withdrawal of complaint.

280. If a complainant, at any time before a final order is passed in any case under this Chapter, satisfies the Magistrate that there are sufficient grounds for permitting him to withdraw his complaint against the accused, or if there be more than one accused, against all or any of them, the Magistrate may permit him to withdraw the same, and shall thereupon acquit the accused against whom the complaint is so withdrawn.

THE FIRST SCHEDULE

CLASSIFICATION OF OFFENCES

EXPLANATORY NOTES: (1) In regard to offences under the Bharatiya Nyaya Sanhita, the entries in the second and third columns against a section the number of which is given in the first column are not intended as the definition of, and the punishment prescribed for, the offence in the Bharatiya Nyaya Sanhita, but merely as indication of the substance of the section.

(2) In this Schedule, (i) the expression "Magistrate of the first class" and "any Magistrate" does not include Executive Magistrates; (ii) the word "cognizable" stands for "a police officer may arrest without warrant"; and (iii) the word "non-cognizable" stands for "a police officer shall not arrest without warrant".

I.—OFFENCES UNDER THE BHARATIYA NYAYA SANHITA

Section	Offence	Punishment	Cognizable or Non-cognizable	Bailable or Non-bailable	By what Court triable
1	2	3	4	5	6
49	Abetment of any offence, if the act abetted is committed in consequence, and where no express provision is made for its punishment.	Same as for offence abetted.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
50	Abetment of any offence, if the person abetted does act with different intention from that of abettor.	Same as for offence abetted.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
51	Abetment of any offence, when one act is abetted and a different act is done; subject to the proviso.	Same as for offence intended to be abetted.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
52	Abettor when liable to cumulative punishment for act abetted and for act done.	Same as for offence abetted.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
53	Abetment of any offence, when an effect is caused by the act abetted different from that intended by the abettor.	Same as for offence committed.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
54	Abetment of any offence, if abettor present when offence is committed.	Same as for offence committed.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.
55	Abetment of an offence, punishable with death or imprisonment for life, if the offence be not committed in consequence of the abetment.	Imprisonment for 7 years and fine.	According as offence abetted is cognizable or non-cognizable.	Non-bailable.	Court by which offence abetted is triable.
	If an act which causes harm to be done in consequence of the abetment.	Imprisonment for 14 years and fine.	According as offence abetted is cognizable or non-cognizable.	Non-bailable.	Court by which offence abetted is triable.
56	Abetment of an offence, punishable with imprisonment, if the offence be not committed in consequence of the abetment.	Imprisonment extending to one-fourth of the longest term provided for the offence, or fine, or both.	According as offence abetted is cognizable or non-cognizable.	According as offence abetted is bailable or non-bailable.	Court by which offence abetted is triable.

THE SECOND SCHEDULE

(See section 522)

FORM No.1

NOTICE FOR APPEARANCE BY THE POLICE

[See section 35(3)]

Serial No.....

Police Station.....

To,

.....

[Name of the Accused/Noticee]

.....

[Last known Address]

.....

[Phone No./Email ID (if any)]

In pursuance of sub-section (3) of section 35 of the Bharatiya Nagarik Suraksha Sanhita, 2023, I hereby inform you that during the investigation of FIR/ Case No dated u/s registered at Police Station, it is revealed that there are reasonable grounds to question you to ascertain facts and circumstances from you, in relation to the present investigation. Hence you are directed to appear before me at AM/ PM on at

Police Station.

Name and Designation of the Officer In charge
(Seal)

FORM No. 33

CHARGES

(See sections 234, 235 and 236)

I. CHARGES WITH ONE-HEAD

(1)(a) I,.....(*name and office of Magistrate, etc.*), hereby charge you.....(*name of accused person*) as follows:—

(b) On section 147.—That you, on or about the.....day of....., at....., waged war against the Government of India and thereby committed an offence punishable under section 147 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of this Court.

(c) And I hereby direct that you be tried by this Court on the said charge.

(*Signature and seal of the Magistrate*)

[*To be substituted for (b)*]:—

(2) On section 151.—That you, on or about the.....day of....., at....., with the intention of inducing the President of India [*or, as the case may be, the Governor of*.....(*name of State*)] to refrain from exercising a lawful power as such President (*or, as the case may be, the Governor*) assaulted President (*or, as the case may be, the Governor*), and thereby committed an offence punishable under section 151 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(3) On section 198.—That you, on or about the.....day of....., at....., did (*or omitted to do, as the case may be*), such conduct being contrary to the provisions of.....Act....., section....., and known by you to be prejudicial to....., and thereby committed an offence punishable under section 198 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(4) On section 229.—That you, on or about the.....day of....., at....., in the course of the trial of.....before....., stated in evidence that “.....” which statement you either knew or believed to be false, or did not believe to be true, and thereby committed an offence punishable under section 229 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(5) On section 105.—That you, on or about the.....day of....., at....., committed culpable homicide not amounting to murder, causing the death of....., and thereby committed an offence punishable under section 105 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(6) On section 108.—That you, on or about the.....day of....., at....., abetted the commission of suicide by A.B., a person in a state of intoxication, and thereby committed an offence punishable under section 108 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(7) On section 117(2).—That you, on or about the.....day of....., at....., voluntarily caused grievous hurt to....., and thereby committed an offence punishable under section 117(2) of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(8) On section 309(2).—That you, on or about the.....day of....., at....., robbed..... (state the name), and thereby committed an offence punishable under section 309(2) of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(9) On section 310(2).—That you, on or about the.....day of....., at....., committed dacoity, an offence punishable under section 310(2) of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of this Court.

II. CHARGES WITH TWO OR MORE HEADS

(1)(a) I,.....(name and office of Magistrate, etc.), hereby charge you.....(name of accused person) as follows:—

(b) On section 179.—*First*—That you, on or about the.....day of....., at....., knowing a coin to be counterfeit, delivered the same to another person, by name, A. B., as genuine, and thereby committed an offence punishable under section 179 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Secondly—That you, on or about the.....day of....., at....., knowing a coin to be counterfeit attempted to induce another person, by name, A.B., to receive it as genuine, and thereby committed an offence punishable under section 179 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

(c) And I hereby direct that you be tried by the said Court on the said charge.

(Signature and seal of the Magistrate)

[To be substituted for (b)]:—

(2) On sections 103 and 105.—*First*—That you, on or about the.....day of....., at....., committed murder by causing the death of....., and thereby committed an offence punishable under section 103 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Secondly—That you, on or about the.....day of....., at....., by causing the death of....., committed culpable homicide not amounting to murder, and thereby committed an offence punishable under section 105 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

(3) On sections 303(2) and 307.—*First*—That you, on or about the.....day of....., at....., committed theft, and thereby committed an offence punishable under section 303(2) of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Secondly—That you, on or about the.....day of....., at....., committed theft, having made preparation for causing death to a person in order to the committing of such theft, and thereby committed an offence punishable under section 307 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Thirdly—That you, on or about the.....day of....., at....., committed theft, having made preparation for causing restraint to a person in order to the effecting of your escape after the

committing of such theft, and thereby committed an offence punishable under section 307 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

Fourthly—That you, on or about the.....day of....., at....., committed theft, having made preparation for causing fear of hurt to a person in order to the restraining of property taken by such theft and thereby committed an offence punishable under section 307 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

(4) Alternative charge on section 229.—That you, on or about the.....day of....., at....., in the course of the inquiry into....., before....., stated in evidence that “.....”, and that you, on or about the.....day of....., at....., in the course of the trial of,..... before, stated in the evidence that “.....”, one of which statements you either knew or believed to be false, did not believe to be true, and thereby committed an offence punishable under section 229 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session.

(In cases tried by Magistrates substitute “within my cognizance” for “within the cognizance of the Court of Session”.)

III. CHARGES FOR THEFT AFTER PREVIOUS CONVICTION

I,.....(name and office of Magistrate, etc.) hereby charge you.....(name of accused person) as follows:—

That you, on or about the.....day of....., at....., committed theft, and thereby committed an offence punishable under section 303(2) of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of the Court of Session (or Magistrate, as the case may be).

And you, the said(name of accused), stand further charged that you, before the committing of the said offence, that is to say, on the..... day of....., had been convicted by the.....(state Court by which conviction was had) at.....of an offence punishable under Chapter XVII of the Bharatiya Nyaya Sanhita, 2023 with imprisonment for a term of three years, that is to say, the offence of house-breaking by night.....(describe the offence in the words used in the section under which the accused was convicted), which conviction is still in full force and effect, and that you are thereby liable to enhanced punishment under section 13 of the Bharatiya Nyaya Sanhita, 2023.

And I hereby direct that you be tried, etc.

FORM No. 34

SUMMONS TO WITNESS

(See sections 63 and 267)

To.....of.....

WHEREAS complaint has been made before me that.....(*name of the accused*) of(*address*) has (*or is suspected to have*) committed the offence of.....(*state the offence concisely with time and place*), and it appears to me that you are likely to give material evidence or to produce any document or other thing for the prosecution.

You are hereby summoned to appear before this Court on the..... day of.....next at ten o'clock in the forenoon, to produce such document or thing or to testify what you know concerning the matter of the said complaint, and not to depart thence without leave of the Court; and you are hereby warned that, if you shall without just excuse neglect or refuse to appear on the said date, a warrant will be issued to compel your attendance.

Dated, this..... day of....., 20

(Seal of the Court)

(Signature)

FORM No. 58

WARRANT OF IMPRISONMENT ON FORFEITURE OF BOND FOR GOOD BEHAVIOUR

(See section 491)

To the Superintendent (*or Keeper*) of the Civil Jail at.....

WHEREAS.....(*name, description and address*) did, on the day of....., 20....., give security by bond in the sum of rupees..... for the good behaviour of.....(*name, etc., of the principal*), and proof of the breach of the said bond has been given before me and duly recorded, whereby the said.....(*name*) has forfeited to Government the sum of rupees....., and whereas he has failed to pay the said sum or to show cause why the said sum should not be paid although duly called upon to do so, and payment thereof cannot be enforced by attachment of his movable property, and an order has been made for the imprisonment of the said.....(*name*) in the Civil Jail for the period of.....(*term of imprisonment*);

This is to authorise and require you, the Superintendent (*or Keeper*), to receive the said.....(*name*) into your custody, together with this warrant, and to keep him safely in the said Jail for the said period of.....(*term of imprisonment*), returning this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20.....

(Seal of the Court)

(Signature)

DIWAKAR SINGH,
Joint Secretary & Legislative Counsel to the Govt. of India.